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Case Number: 26VECV02557 Hearing Date: September 15, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SHAWN PARTOVI, an
individual,

Plaintiff,

vs.

YANNA SAPOZHNIKOV, an individual; DANIL
SAPOZHNIKOV, an individual; and DOES 1 to 25, inclusive.

Defendants.

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CASE NO.: 433252490796

ORDER

OVERRULING DEFENDANTS' DEMURRER

ORDER

DENYING DEFENDANTS' MOTION TO STRIKE

I.

BACKGROUND

Plaintiff Shawn Partovi ("Plaintiff")

brings this habitability action against Defendants Yanna Sapozhnikov and Danil Sapozhnikov (jointly, "Defendants"). Plaintiff alleges he was the tenant of a single-family house located at 4121 Picasso Avenue, Woodland Hills, CA 91364 ("Property"). Plaintiff alleges the Property was unsafe, unsanitary, and uninhabitable. Plaintiff alleges Defendants owned and managed the Property but failed to cure the Property's defects.

Defendants

demur to and move to strike portions of the Complaint.

II.

PROCEDURAL

HISTORY

On April 29, 2026, Plaintiff filed a Complaint alleging (1) Constructive Eviction; (2) Breach of Covenant of Quiet Enjoyment; (3) Tortious Breach of Implied Warranty of Habitability; (4) Statutory Breach of Warranty of Habitability (Civ. Code §§ 1941, 1941.1 and 1942.4)[1]; (5) Breach of Contract; (6) Breach of Implied Covenant of Good Faith and Fair Dealing; (7) Intentional Infliction of Emotional Distress; (9) Private Nuisance; (10) Unfair Business Practices; (11) Negligence; (12) Negligent Maintenance of the Premises; (13) Tenant Harassment and Retaliation; (14) Tenant Harassment; (15) Negligent Violation of Statutory Duty; and (16) Unlawful Retention of Security Deposit.

On July 30, 2026, Defendants filed the instant Demurrer with Motion to Strike.

On September 1, 2026, Plaintiff filed its Oppositions.

On September 4, 2026, Defendants filed a Reply to the Motion to Strike.

III.

MEET AND CONFER

Before filing

a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendants

satisfied their meet and confer obligation. (See Declaration of Samantha R. Maixner filed July 30, 2026, ¶¶ 3-4.)

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IV.

DEMURRER

A.

Legal Standard

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) “[T]he court

gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Id.)

Allegations are to be liberally construed. (See Code Civ. Proc. § 452.)

In testing the sufficiency

of the complaint, the court must assume

the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A

demurrer tests the pleadings alone and

not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court* (1984) 153

Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See

Poizner v. Fremont Gen. Corp. (2007) 148 Cal.App.4th 97, 119; *Kong v.*

City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to

amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The

burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable

possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B.

Analysis

1.

4th Cause of Action –Breach
of Warranty of Habitability

(Civ. Code §§ 1941, 1941.1, & 1942.4)

Civil Code §

1941 establishes an implied warranty of habitability. (See Civ. Code § 1941.) Civil Code § 1941.1 enumerates standard characteristics a dwelling must possess to be deemed tenantable for purposes of § 1941. (See Civ. Code § 1941.1(a).) Civil Code § 1942.4 provides a statutory cause of action against a landlord who demands or collects rent, issues a notice of rent increase rent, or serves a 3-day notice to pay or quit if all of the following conditions exist prior to the landlord's demand or notice: (1) the rental unit lacks the affirmative standard characteristics enumerated in § 1941.1, or violates Health and Safety Code § 17920.10, or is deemed and declared substandard as set forth in Health and Safety Code § 17920.3; (2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or its agent in writing of her obligations to abate the nuisance or repair the substandard conditions; (3) The conditions are not abated 35 days beyond service of the notice without good cause for the delay; and (4) The conditions were not caused by an act or omission of the tenant or lessee in violation of § 1929 or 1941.2. (See Civ. Code § 1942.2.)

Defendants

argue the fourth cause of action fails to allege written notice from a public enforcement officer and the lapse of a 35-day cure period. (See Dem. at 4:13-15.) Defendants argue alleging Plaintiff's complaints to Defendants does not satisfy the statutory notice requirement. (See id., at 6:1-2.)

Plaintiff

argues any failure to meet the requirements set forth by § 1942.4 does not negate the allegations concerning Defendants' failure to maintain the Property in compliance with Civil Code §§ 1941 and 1941.1. (See Opp. at 8:10-13.) Plaintiff argues because his habitability theories asserted under §§ 1941 and 1941.1 are sufficiently alleged, the demurrer should be overruled. (See id., at 8:25-28.)

The Court

will overrule the demurrer. Here the Complaint alleges the Property was untenantable due to the lack of standard characteristics required by § 1941.1. (See Compl., ¶¶ 23, 83.) Plaintiff alleges these conditions persisted and caused him illness and damages. (See id., ¶¶ 43, 86-87.) The Court agrees these allegations fail to state a claim under § 1942.4 because there are no allegations satisfying the second and third requirements of § 1942.4. However, Plaintiff alleges the rental unit lacked the affirmative standard characteristics enumerated in § 1941.1 which is sufficient to state a claim pursuant to §§ 1941 and 1941.1. Practically speaking then, Plaintiff's fourth cause of action presents alternate theories for his statutory breach of warranty of habitability, one of which – section 1942.4 – is defectively pled.

Thus, the

Court SUSTAINS IN PART Defendant's Demurrer to the Fourth Cause of Action for Statutory Breach of Warranty of Habitability to the extent it relies on Civil Code § 1942.4 WITH LEAVE TO AMEND.

2.

10th Cause of Action –Business
and Professions Code § 17200

To set forth

a claim for a violation of Business and Professions Code § 17200 ("UCL"), Plaintiff must establish Defendant was engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and certain specific acts. (See Bus. & Prof. Code, § 17200.) A cause of action for unfair competition "is not an all-purpose substitute for a tort or contract action." (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.) "Under the UCL's 'unfair' prong, 'a practice may be deemed unfair even if not specifically proscribed by some other law.'" (Beverage v. Apple, Inc. (2024) 101 Cal.App.5th 736, 748 [quoting Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 180].) "An action under the UCL 'is not an all-purpose substitute for a tort or contract action.'" (That v. Alders Maintenance Assn. (2012) 206 Cal.App.4th 1419, 1427.) "Proposition 64 amended the UCL to provide a standing requirement for persons seeking relief under the UCL: a person bringing an action under the UCL must establish that he or she "has suffered injury in fact and has lost money or property as a result of the

unfair competition.” (Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235; see also Gray v. Dignity Health (2021) 70 Cal.App.5th 225, 237.)

Defendants

argue the restitution Plaintiff seeks, a retroactive reduction in the rent he paid for the Property, is not restitution within the meaning of the UCL. (See Dem. at 6:26-27.) Second, Defendants argue because Plaintiff has adequate legal remedies available to him, equitable relief under the UCL is foreclosed. (See id., at 7:7-15, citing Prudential Home Mortgage Co. v. Superior Court (1998) 66 Cal.App.4th 1236, 1249.) Third, Defendants argue to the extent the UCL claim relies on Civil Code § 1942.4, it fails for the same reasons the fourth cause of action fails. (See id., at 7:22-24.)

Plaintiff

argues the alleged statutory habitability violations and Defendants' alleged continued collection of rent despite knowledge of those conditions provide the predicate for the unlawful and unfair prongs of the UCL claim. (See Opp. at 10:1-4.) Plaintiff argues he seeks restitution, through the return of rental payments, not compensatory damages under this claim. (See id., at 10:5-17.) Plaintiff also argues the existence of other legal remedies does not preclude his UCL claim as UCL remedies are cumulative to remedies available under other laws. (See id., at 10:25-28, citing Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 179.)

The Court

finds the claim is sufficiently stated. Here, the Complaint alleges given the Property's uninhabitable conditions including under Civil Code § 1941.1, Defendants' decision to lease the Property to Plaintiff and collect rent from Plaintiff constitute unlawful, unfair, and fraudulent business practices. (See Compl., ¶ 126.) Plaintiff alleges he suffered illness and loss in his leasehold value. (See id., ¶¶ 119, 127.) Plaintiff seeks restitution of all sums of money obtained by Defendants during the lease term. (See id., ¶ 130.) On these allegations, Plaintiff has satisfied the unlawful prong of the UCL claim by alleging Defendants violated the breach of implied warranty of habitability by breaching the standards for residential tenantability in Civil Code § 1941.1, failing to cure the defects, and continuing to collect rent from Plaintiff while the Property remained untenable. Plaintiff also sufficiently seeks restitution in the form of return of rental payments made while the Property was untenable. (See Cortez, 23 Cal.4th 163, 177 [the object of restitution

includes “money that once had been in the possession of the person to whom it was to be restored. The status quo ante to be achieved by the restitution order was to again place the victim in possession of that money.”].)

“UCL remedies

are cumulative to remedies available under other laws (§17205) and,

as section 17203 indicates, have an independent purpose

–deterrence of and restitution for unfair business practices... The court's discretion is very broad. Section

17203 does not mandate restitutionary or injunctive relief when an unfair

business practice has been shown.” (Cortez, 23 Cal.4th 163, 179-180.) Because the UCL

remedies provision contemplates that UCL remedies will coexist with other legal

remedies and are discretionary, the Court does not find the existence of

adequate legal remedies necessarily precludes Plaintiff from seeking equitable

remedies under his UCL claim at the pleadings stage. (See Bus. &

Prof. Code § 17205; Zhang

v. Superior Court (2013) 57 Cal.4th 364 [“UCL remedies are ‘cumulative ... to the remedies or penalties available under all other

laws of this state” and are discretionary]; see also Rader Co. v. Stone (1986)

178 Cal.App.3d 10, 29 [A plaintiff is entitled to plead facts or legal

theories in the alternative, even ones that are inconsistent].)

Thus, the

Court **OVERRULES** Defendant's Demurrer to the Tenth Cause of Action for Unfair

Business Practices.

V.

MOTION TO STRIKE

A.

Legal Standard

The court

may, upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any irrelevant, false, or improper matter inserted in any

pleading. (See Code Civ. Proc. § 436(a).) The grounds for moving to

strike must appear on the face of the pleading or by way of judicial notice. (See

id., at § 437.)

A complaint

including a request for punitive damages must also include allegations showing

that the plaintiff is entitled to such an award. (See Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294(c)(1).) "Despicable conduct" is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Tomaselli v. Transamerica Co. (1994) 25 Cal.App.4th 1269, 1286-1287.)

B.

Analysis

Defendants

move to strike punitive damages allegations and prayer from the Complaint as follows:

(1)

Prayer for Relief, Paragraph 8: "For punitive and exemplary damages based on Defendants' willful, malicious, wanton and fraudulent misconduct, in an amount according to proof at trial," in its entirety;

(2)

Paragraph 47: "DEFENDANTS' behavior simply shocks the conscience and falls well outside the standards of civilized decency, and as such, punitive damages are warranted in this case," in its entirety;

(3)

Paragraph 71 in its entirety;

(4)

Paragraph 80 in its entirety;

(5)

Paragraph 105 in its entirety;

(6)

Paragraph 120 in its entirety;

(7)

Paragraph 142 in its entirety;

(8)

Paragraph 152 in its entirety; and

(9)

Paragraph 171 in its entirety.

Defendants

moves to strike punitive damages allegations and prayer on grounds they make boilerplate allegations they acted willfully, maliciously, or oppressively without facts alleging conduct amounting to something beyond a mere habitability dispute. (See Mot. at 5:3-17, 6:20-27.)

Plaintiff

argues the Complaint alleges sufficiently alleges facts supporting its punitive damages allegations and prayer including that the Property suffered from various defects, Plaintiff repeatedly notified Defendants of the defects and their effect on his health and safety, Defendants failed to cure the defects, and Defendants engaged in harassing and retaliatory conduct. (See Opp. at 4:4-9.) Plaintiff relies on *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867, to argue his allegations are sufficient. (See *id.*, at 4:10-16.)

Defendants

argue *Penner* concerned notice of repeated violent crimes, which is unlike the severity of the allegations here. (See Reply at 2:5-9.) Defendants argue here Plaintiff only alleges defects (a noisy water heater, discolored water, and an insect infestation), notice to Defendants, and their dismissive and hostile responses, which are unpleasant but not conduct sufficient to support punitive damages. (See *id.*, at 3:12-20.)

The Court

finds the Complaint alleges sufficient allegations to support the punitive damages allegations and prayer Defendants seek to strike. In *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921, the Court of Appeal found allegations “defendant had actual knowledge of defective conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions” and that defendants . . . “acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious”

were sufficient to support a prayer for exemplary damages.

Here, the

Complaint alleges the Plaintiff occupied the Property from March 1, 2025, to January 1, 2026. (See Compl., ¶ 12.) The Complaint alleges the Property suffered from defects during this time including brown shower water, a water heater that emitted loud, persistent noises, and pest infestations of house centipedes, cockroaches, and spiders. (See id., ¶¶ 3, 27, 33.)

Plaintiff alleges he had to shower elsewhere on at least one occasion and that house centipedes were on his bed. (See id., ¶¶ 31, 33.) Plaintiff

alleges the Property was untenantable under Civil Code § 1941.1. (See id., ¶ 23.) Plaintiff alleges he notified Defendants of these hazardous conditions, as early as two weeks after occupying the Property, but they failed to correct the defects. (See id., ¶ 24, 28.) Plaintiff alleges Defendants informed him that the exterminator only came once a month and addresses the outside perimeter of the Property. (See id., ¶ 33.) Plaintiff alleges Defendants were dismissive of Plaintiff's complaints, accused him of lying, and consciously disregarded his health and safety. (See id., ¶¶ 37, 41, 45-46.)

The Court finds the allegations are similar to the allegations found sufficient in Stoiber, as Plaintiff likewise alleges notice to Defendants during a period of about nine months, conditions that didn't satisfy the standard for tenantability for that same period, and Defendants' disregard of Plaintiff's complaints. The Court concludes a trier of fact could find this conduct amounts to despicable conduct warranting punitive damages. Thus, the Court DENIES Defendants' Motion to Strike.

VI.

CONCLUSION

Based on the

foregoing, the Court SUSTAINS IN PART Defendant's Demurrer to the Fourth Cause of Action for Statutory Breach of Warranty of Habitability to the extent it relies on Civil Code § 1942.4 WITH LEAVE TO AMEND but OVERRULES it as to the Tenth Cause of Action for violation of Business & Professions Code § 17200.

The Court

DENIES Defendants' Motion to Strike.

Plaintiff has

leave to file an amended complaint by September 30, 2026.

The Case

Management Conference is continued to December 14, 2026, at 8:30 a.m.

IT

IS SO ORDERED.

DATED: September 15, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.